

Krishna Chandra Mishra v. State of U.P. & Anr.

High Court of Judicature at Allahabad · Single Judge · 6 September 2021 · U/S 482/378/407 No. 2865 of 2021 · U/S 482/378/407 No. 2865 of 2021 · **Petition allowed; s.135 proceedings quashed after s.152 compounding.**

HEADNOTE

Section 152(1) of the Electricity Act, 2003 — first offence of theft of electricity compounded by deposit of compounding fee with the department — criminal proceedings under Section 135, including charge-sheet and non-bailable warrants, cannot continue. The department remains at liberty to assess unauthorized use of electricity in a civil proceeding under the U.P. Electricity Supply Code, 2005. Section 482 petition allowed; entire criminal proceedings quashed.

FACTUAL SUMMARY

Krishna Chandra Mishra faced a Section 135(1)(a) theft prosecution in Case Crime No. 176/2018 at Police Station Chhapiya, District Gonda. An earlier Section 482 petition (No. 807/2021) was disposed of on 19 February 2021 with liberty to apply for compounding within ten days. He deposited a compounding fee of Rs. 4,000 with the electricity department, yet a non-bailable warrant dated 26 August 2021 issued and Charge Sheet No. 01.2018 dated 22 July 2018 remained pending before the Special Judge, E.C. Act, Gonda. He sought quashing of the criminal proceedings.

REUSABLE CONSTRUCTIONS

1. Compounding of a first electricity-theft offence under Section 152(1) of the Electricity Act, 2003 brings the corresponding Section 135 criminal prosecution to an end. ¶ 1
2. Compounding of the criminal offence of theft does not preclude the licensee from assessing unauthorized use of electricity in civil proceedings under the U.P. Electricity Supply Code, 2005. ¶ 1

HOLDING-UNITS

INTERPLAY · EA2003::152

compounding of first theft offence bars s.135 prosecution

HOLDING

Where the first offence of theft of electricity under Section 135 of the Electricity Act, 2003 has been compounded by the department under Section 152(1) and the compounding fee deposited, the criminal proceedings under Section 135 cannot continue. Charge-sheet and non-bailable warrants issued in ignorance of that compounding are liable to be quashed. The department remains at liberty to make assessment for unauthorized use of electricity in a civil proceeding strictly in accordance with the U.P. Electricity Supply Code, 2005. ¶ 1

PRINCIPLE TAGS

s135-arrest-safeguards-and-compounding-remedy First theft offence compounded under s.152(1) by deposit of Rs. 4,000; s.135 prosecution including NBW and charge-sheet quashed. ¶ 1

126-vs-135-distinct-fields-but-126-still-applies-to-theft Criminal s.135 proceedings ended by compounding, but the department was left free to assess unauthorized use in civil proceedings under the Supply Code, 2005. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OR QUANTUM OF ANY CIVIL ASSESSMENT FOR UNAUTHORIZED USE UNDER THE U.P. ELECTRICITY SUPPLY CODE, 2005

Department given liberty to assess in civil proceedings; no determination on this petition. ¶ 1

TABLE OF AUTHORITIES

AUTHORITY	PROPOSITION	HOW TREATED	CITED BY	TREATMENT
Krishna Chandra Mishra v. State of U.P. and another Section 482 Petition No. 807/2021, order dated 19.02.2021			1	Referred

SCJ-2557 · Krishna Chandra Mishra v. State of U.P. & Anr. · U/S 482/378/407 No. 2865 of 2021 · Supply Code Jurisprudence

A jurisprudence extract prepared from the text of the judgment; not a substitute for the judgment, and to be verified against the original before use.